

Anil Sharma And Others vs Coram on 21 August, 2024

Neutral Citation No. (2024:HHC:7118) IN THE HIGH COURT OF HIMACHAL PRADESH,
SHIMLA Cr. Revision No. 186 of 2020 .

Reserved on: 24.7.2024

Date of Decision: 21.8.2024

Anil Sharma and others

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Versus

Coram

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to

Central Bureau of Investigation and another

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Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?1 No.

For the Petitioners

:

Mr. Sudhir Thakur,
Advocate, with Mr.
Sharma, Advocate.

For the Respondents

:

Mr. Balram Sharma, Deputy
Solicitor General of India for

respondent No.1/CBI.
Ms. Ayushi Negi, Deputy Advocate
General, for respondent

No.2/State, with Ms. Anupama
Chauhan, Investigating Officer.

Rakesh Kainthla, Judge

The revision is directed against the order dated 4.12.2019, passed by learned Chief Judicial Magistrate exercising the powers of Special Judicial Magistrate for CBI, Shimla Whether reporters of Local Papers may be allowed to see the judgment? Yes.

Neutral Citation No. (2024:HHC:7118) (learned Trial Court), vide which the objections/protest petition filed by the petitioners were dismissed and cancellation report .

filed by the CBI was accepted. (Parties shall hereinafter be referred to in the same manner as they were arrayed before the learned Trial Court for convenience).

2. Briefly stated, the facts giving rise to the present petition are that Jitender Kumar (since deceased) was married to Poonam on 8.12.2013 as per Hindu Rites and Customs. Poonam used to abuse Jitender. The matter was reported to the Panchayat repeatedly. Up-Pradhan got many compromises effected. Jitender used to remain under mental pressure due to the acts of his wife. Poonam did not allow Jitender to meet any person. She used to quarrel with him in case he would go outside the home. On 5/6.12.2014, the marriage of Anil Sharma was being solemnized. Barat departed from Baragaon to Shoghi (Dhar Thalag) at 10-10.15 AM. Jitender, Dharminder, Virender, the informant and his friends also accompanied the Barat. The informant was present at Shoghi at 5.30 pm when Jitender called him. Jitender appeared to be depressed. He told the informant that he was fed up with the behaviour of his wife and parents-

in-law. He was taking away his life and the informant should Neutral Citation No. (2024:HHC:7118) take care of Jitender's parents. The informant recorded this conversation on his mobile. Subsequently, Jitender died when .

his vehicle bearing Registration HP-51-3009 fell into the gorge.

The informant reported the matter to the police. FIR No. 150 of 2014 was registered in the Police Station. The police conducted the investigation. Subsequently, a writ petition titled Rukmani Sharma Vs. The state of H.P., CWP No. 3501/2015, was filed before this Court and the Court handed over the investigation of the FIR to the Central Bureau of Investigation (CBI) vide order dated 24.9.2015.

3. The Central Bureau of Investigation registered the FIR and conducted the investigation. The statements of witnesses were recorded. It was found after the investigation that Jitender Kumar was running a taxi business. He had a vehicle for which he had kept a driver. Poonam Sharma was known to Jitender Kumar for many years. They married each other on 8.12.2013. Problems stated in their relationship due to the suspicious nature of Poonam. Poonam and her mother-in-

law had a quarrel on 6.12.2014, which fact was narrated to Jitender. Jitender had gone to attend the marriage of Anil Sharma in the vehicle of Dharminder Sharma. They returned in Neutral Citation No. (2024:HHC:7118) the same car. They stopped the vehicle at the Railway bridge.

Poonam went from village Lamba Jubbar to Shoghi and met .

them at the Railway bridge. Thereafter, Jitender and Poonam went towards the village Lamba Jubbar. On the way, Poonam came out of the car near village Dared and rushed towards the house of one Kamal. Jitender tried unsuccessfully to call her back and thereafter went towards his village at Lamba Jubbar.

He made phone calls from his vehicle, which fell into a ditch.

The deceased and Poonam did not have a cordial relationship.

Poonam turned up at Shoghi after she was admonished by her mother-in-law. Poonam abused the deceased and the deceased was shaken by humiliation. The deceased was told that Poonam might file a case against him, his parents and his family members. He wanted to commit suicide. Poonam stated that the deceased wanted to drive down into the ditch with her; however, she escaped. The suicidal thoughts appeared to exist for a considerable point of time; which may be due to financial hardship. Poonam was rude and aggressive. She used to humiliate her husband as per the family members of the deceased. Poonam, on the other hand, stated that she was being harassed by the deceased and his family members. It was not Neutral Citation No. (2024:HHC:7118) established that Poonam had encouraged Jitender to commit suicide. She was giving vent on her feelings when she went to .

Shoghi after admonition by her mother-in-law. There was nothing to show that Poonam had created such circumstances that the deceased was left with no other option but to commit suicide. There was insufficient material to file a charge sheet against Poonam and her father; hence CBI prayed that the closure report be accepted.

4. The petitioners/objectors filed protest petition/objections asserting that the CBI has drawn wrong and distorted conclusions. The CBI submitted the cancellation report without properly scanning the evidence collected by the police.

The Investigating Officer changed the version of the witnesses in a biased manner. It was duly established from the statements of Dharminder, Virender, Sanjay and Radhey Shyam that the deceased was intercepted and stopped by Poonam near the railway bridge. She caught hold of her

husband Jitender and dragged him out of the car. She thrashed him in front of his friends. She forced Jitender to sit in her car. This incident was witnessed by two friends of Jitender, who were following Dharminder's car in their car bearing registration No. HP-01- Neutral Citation No. (2024:HHC:7118) 1874 being driven by Gopal and accompanied by Radhey Shyam.

This incident is sufficient to prove the dominating, aggressive .

and cruel nature of Poonam who dared to beat, assault and humiliate her husband in the presence of his near and dear ones.

This incident and the statements of witnesses were sufficient to conclude that Jitender was being subjected to cruel treatment by his wife Poonam. The Investigating Officer had wrongly concluded that Poonam was beaten by Jitender. A single instance of public humiliation is sufficient to drive anyone to commit suicide. The Court could take cognizance of the commission of an offence punishable under Section 306 of IPC based on this incident. The statement of Kamal shows that Poonam had not received any injury and she was talking to her parents. Kamal stated that he heard Pankaj telling him about the accident of Jitender. The Investigating Officer intentionally changed the earlier statement of Kamal recorded by the police just to give an edge to the accused persons. False evidence was created by accused Poonam and her brother. Call recording of the conversation between the deceased and Anil showed the frustration of the deceased which led him to commit suicide.

Naresh Shandil also stated that Jitender was in great tension.

Neutral Citation No. (2024:HHC:7118) Jitender was publically humiliated earlier and he was under great stress. The Investigating Officer wrongly held that Jitender .

was under debt and he had borrowed money. Jitender was well off and had helped many people. Therefore, it was prayed that the present objections be accepted and the cognizance in the matter be taken or further investigation be directed to be conducted by some other Investigating Officer not below the rank of Dy.SP (CBI).

5. Learned Trial Court held that the objection regarding the appreciation of the statements of Dharminder and Virender does not hold any ground in view of the call details record and tower location, which suggests that they were not accompanying the deceased at the time when the Poonam allegedly humiliated the deceased. The statement of Kamal corroborates the version of Poonam regarding the events from 5.00 PM to 5.52 PM when the deceased allegedly committed suicide. The circumstances did not suggest any active/direct act on the part of Poonam which led to the deceased to commit suicide. The incident which occurred at 5.00 PM cannot be said to be an act of instigation leading the deceased to commit suicide. The circumstances show the intention of the deceased to Neutral Citation No. (2024:HHC:7118) take revenge. There was nothing to show that the investigation was not conducted fairly. Therefore, the Court accepted the .

closure report and discarded the objections.

6. Being aggrieved from the order passed by the learned Trial Court, the petitioner has filed the present revision asserting that the order is illegal, unjust and against the facts and circumstances of the case. A prima facie case existed to take cognizance. Serious allegations were made against the Investigating Officer that he had tried to bully the witnesses.

The statements were not recorded as per their versions. The Investigating Officer changed the version of the witnesses in a biased manner. Once the serious allegations were made against the Investigating Officer, the proper course would be to send the case for reinvestigation by an officer not below the rank of Superintendent of Police. The Court could have treated the protest petition as a private complaint and called the witnesses of the complainant as per the Cr.P.C. The witnesses had stated in their statements under Sections 161 Cr.P.C. that Poonam had intercepted the deceased's car, caught hold of her husband, dragged him out of the car and badly thrashed him in front of his friends. She took the deceased with her in her car. This Neutral Citation No. (2024:HHC:7118) incident was sufficient to lead the deceased to commit suicide.

The deceased had called his cousin and the conversation was .

recorded. The deceased was under great stress and tension due to ill-treatment and humiliation by accused Poonam and her friends. Learned Trial Court wrongly held that the statements of Dharminder and Virender do not hold any ground in view of the call details record and tower location. The defence version is not to be taken into consideration while taking cognizance.

Therefore, it was prayed that the present revision be allowed and the order passed by the learned Trial Court be set aside.

7. I have heard Mr Sudhir Thakur, learned Senior Counsel assisted by Mr Somesh Sharma, learned counsel for the petitioner, Mr Bal Ram Sharma, learned Deputy Solicitor General of India for respondent No.1/CBI and Ms Ayushi Negi, learned Deputy Advocate General, for the respondent No.2/State.

8. Mr. Sudhir Thakur, learned Senior Counsel for the petitioners submitted that the statements of the witnesses recorded by the CBI show that Poonam had beaten and humiliated Jitender in the presence of his friends at Shoghi. She took Jitender with him in his car. The deceased called his cousin Neutral Citation No. (2024:HHC:7118) and told him about his intention to commit suicide and that he was fed up with the behaviour of Poonam and her parents. These .

facts are sufficient to show the abetment of suicide. The Investigating Officer had not correctly recorded the statements of the witnesses and when such serious allegations were made against the Investigating Officer, the investigation should have been handed over to an independent senior police official.

Learned Trial Court failed to do so. Therefore, he prayed that the present petition be allowed and the order passed by the learned Trial Court be set aside.

9. Mr. Bal Ram Sharma, learned Deputy Solicitor General of India for respondent No.1/CBI submitted that the investigation only proved the single incident. There is no series of events creating the circumstances to show that the deceased was left with no option but to commit suicide. Learned Trial Court had rightly accepted the closure report. Therefore, he prayed that the present petition be dismissed.

10. Ms. Ayushi Negi, learned Deputy Advocate General for respondent No.2/State submitted that since the investigation Neutral Citation No. (2024:HHC:7118) was conducted by CBI, the State has nothing to submit in the present case.

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11. I have given considerable thought to the submissions made at the bar and have gone through the records carefully.

12. It was laid down by the Hon'ble Supreme Court in Manju Ram Kalita v. State of Assam, (2009) 13 SCC 330: (2010) 1 SCC (Cri) 1015: 2009 SCC OnLine SC 1214: [2009] 9 SCR 902: 2009 INSC 854 that the Court exercising revisional jurisdiction cannot reappraise the facts unless there is some perversity. It was observed:

"9. So far as Issue 1 is concerned i.e. as to whether the appellant got married to Smt Ranju Sarma, is a pure question of fact. All three courts below have given concurrent findings regarding the factum of marriage and its validity. It has been held to be a valid marriage. It is a settled legal proposition that if the courts below have recorded the finding of fact, the question of reappraisal of evidence by the third court does not arise unless it is found to be totally perverse. The higher court does not sit as a regular court of appeal. Its function is to ensure that law is being properly administered. Such a court cannot embark upon the fruitless task of determining the issues by reappraising the evidence."

13. This position was reiterated in Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460 : (2012) 4 SCC (Civ) 687 : (2013) 1 SCC Neutral Citation No. (2024:HHC:7118) (Cri) 986: 2012 SCC OnLine SC 724:[2012] 7 SCR 988: 2012 INSC 398 wherein it was observed:

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12. Section 397 of the Code vests the court with the power to call for and examine the records of an inferior court for the purposes of satisfying itself as to the legality and regularity of any proceedings or order made in a case. The object of this provision is to set right a patent defect or an error of jurisdiction or law. There has to be a well-

founded error and it may not be appropriate for the court to scrutinise the orders, which upon the face of it bear a token of careful consideration and appear to be in accordance with the law. If one looks into the various judgments of this Court, it emerges that the revisional jurisdiction can be invoked where the decisions under challenge are grossly erroneous, there is no compliance with the provisions of law, the finding recorded is based on no evidence, material evidence is ignored or judicial discretion is exercised arbitrarily or perversely. These are not exhaustive classes but are merely indicative. Each case would have to be determined on its own merits.

14. The FIR was lodged for the commission of offences punishable under Section 306 of IPC. This Section was explained by the Hon'ble Supreme Court in *Geo Varghese v. State of Rajasthan*, (2021) 19 SCC 144: 2021 SCC OnLine SC 873: 2021: INSC:

618 as under:-

15. The ordinary dictionary meaning of the word "instigate" is to bring about or initiate, incite someone to do something. This Court in *Ramesh Kumar v. State of Chhattisgarh* [*Ramesh Kumar v. State of Chhattisgarh*, (2001) 9 SCC 618: 2002 SCC (Cri) 1088] has defined the word "instigate" as under: (SCC p. 629, para 20) Neutral Citation No. (2024:HHC:7118) "20. Instigation is to goad, urge forward, provoke, incite or encourage to do "an act"."

16. The scope and ambit of Section 107IPC and its co-

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relation with Section 306IPC have been discussed repeatedly by this Court. In *S.S. Chheena v. Vijay Kumar Mahajan* [*S.S. Chheena v. Vijay Kumar Mahajan*, (2010) 12 SCC 190: (2011) 2 SCC (Cri) 465], it was observed as under: (SCC p. 197, para 25) "25. Abetment involves a mental process of instigating a person or intentionally aiding a person in doing of a thing. Without a positive act on the part of the accused to instigate or aid in committing suicide, conviction cannot be sustained. The intention of the legislature and the ratio of the cases decided by the Supreme Court is clear that in order to convict a person under Section 306IPC there has to be a clear mens rea to commit the offence. It also requires an active act or direct act which led the deceased to commit suicide seeing no option and that act must have been intended to push the deceased into such a position that he committed suicide."

17. In a recent pronouncement, a two-judge Bench of this Court in *Arnab Manoranjan Goswami v. State of Maharashtra* [*Arnab Manoranjan Goswami v. State of Maharashtra*, (2021) 2 SCC 427: (2021) 1 SCC (Cri) 834], while considering the co-relation of Section 107IPC with Section 306IPC has observed as under: (SCC p. 462, paras 47-48) "47. The above decision [*State of Telangana v. Habib Abdullah Jeelani*, (2017) 2 SCC 779: (2017) 2 SCC (Cri) 142] thus arose in a situation where the High Court had declined [*Habib Abdullah Jeelani v. State of Telangana*, 2014 SCC OnLine Hyd 1299] to entertain a petition for quashing an FIR under Section 482CrPC. However, it nonetheless directed the investigating agency not to arrest the accused Neutral Citation No. (2024:HHC:7118) during the pendency of the investigation. This was held to be impermissible by this Court. On the

other hand, this Court clarified that the High Court if it thinks fit, having regard to the parameters for .

quashing and the self-restraint imposed by law, has the jurisdiction to quash the investigation "and may pass appropriate interim orders as thought apposite in law". Clearly, therefore, the High Court in the present case has misdirected [Arnab Manoranjan Goswami v. State of Maharashtra, 2020 SCC OnLine Bom 2693] itself in declining to enquire prima facie on a petition for quashing whether the parameters in the exercise of that jurisdiction have been duly established and if so whether a case for the grant of interim bail has been made out. The settled principles which have been consistently reiterated since the judgment of this Court in State of Haryana v. Bhajan Lal [State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335: 1992 SCC (Cri) 426] (Bhajan Lal) include a situation where the allegations made in the FIR or the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out a case against the accused. This legal position was recently reiterated in a decision by a two-judge Bench of this Court in Kamal Shivaji Pokarnekar v. State of Maharashtra [Kamal Shivaji Pokarnekar v. State of Maharashtra, (2019) 14 SCC 350: (2019) 4 SCC (Cri) 846].

48. The striking aspect of the impugned judgment [Arnab Manoranjan Goswami v. State of Maharashtra, 2020 SCC OnLine Bom 2693] of the High Court spanning over fifty-six pages is the absence of any evaluation even prima facie of the most basic issue. The High Court, in other words, failed to apply its mind to a fundamental issue which needed to be considered while dealing with a petition for quashing under Article 226 of the Constitution (2024:HHC:7118) Constitution or Section 482CrPC. The High Court, by its judgment dated 9-11-2020 [Arnab Manoranjan Goswami v. State of Maharashtra, 2020 SCC OnLine Bom 2693], has instead allowed the .

petition for quashing to stand over for hearing a month later, and therefore declined to allow the appellant's prayer for interim bail and relegated him to the remedy under Section 439CrPC. In the meantime, liberty has been the casualty. The High Court having failed to evaluate prima facie whether the allegations in the FIR, taken as they stand, bring the case within the fold of Section 306 read with Section 34IPC, this Court is now called upon to perform the task."

18. In M. Arjunan v. State [M. Arjunan v. State, (2019) 3 SCC 315: (2019) 2 SCC (Cri) 219], a two-judge Bench of this Court has expounded the ingredients of Section 306IPC in the following words: (SCC p. 317, para 7) "7. The essential ingredients of the offence under Section 306IPC are (i) the abetment; and (ii) the intention of the accused to aid or instigate or abet the deceased to commit suicide. The act of the accused, however, insulting the deceased by using abusive language will not, by itself, constitute the abetment of suicide. There should be evidence capable of suggesting that the accused intended by such an act to instigate the deceased to commit suicide. Unless the ingredients of instigation/abetment to commit suicide are satisfied the accused cannot be convicted under Section 306IPC."

19. At this stage, we may also refer to another recent judgment of a two-judge Bench of this Court in Ude Singh v. State of Haryana [Ude Singh v. State of Haryana, (2019) 17 SCC 301: (2020) 3 SCC (Cri) 306], which elucidated on the essential ingredients of the offence under Section 306IPC in the

following words: (SCC pp. 321-22, para 16) Neutral Citation No. (2024:HHC:7118) "16. In cases of alleged abetment of suicide, there must be proof of direct or indirect act(s) of incitement to the commission of suicide. It could hardly be disputed that the question of the cause of

suicide, particularly in the context of an offence of abetment of suicide, remains a vexed one, involving multifaceted and complex attributes of human behaviour and responses/reactions. In the case of an accusation for abetment of suicide, the court would be looking for cogent and convincing proof of the act(s) of incitement to the commission of suicide. In the case of suicide, the mere allegation of harassment of the deceased by another person would not suffice unless there be such action on the part of the accused which compels the person to commit suicide; and such an offending action ought to be proximate to the time of occurrence. Whether a person has abetted in the commission of suicide by another or not, could only be gathered from the facts and circumstances of each case.

16.1. For the purpose of finding out if a person has abetted the commission of suicide by another; the consideration would be if the accused is guilty of the act of instigation of the act of suicide. As explained and reiterated by this Court in the decisions above referred, instigation means to goad, urge forward, provoke, incite or encourage to do an act. If the persons who committed suicide had been hypersensitive and the action of the accused is otherwise not ordinarily expected to induce a similarly circumstanced person to commit suicide, it may not be safe to hold the accused guilty of abetment of suicide. But, on the other hand, if the accused by his acts and by his continuous course of conduct creates a situation which leads the deceased perceiving no other option except to commit suicide, the case may fall within the four corners of Section 306IPC. If the accused plays an Neutral Citation No. (2024:HHC:7118) active role in tarnishing the self-esteem and self- respect of the victim, which eventually draws the victim to commit suicide, the accused may be held guilty of abetment of suicide. The question of mens

rea on the part of the accused in such cases would be examined with reference to the actual acts and deeds of the accused and if the acts and deeds are only of such nature where the accused intended nothing more than harassment or snapshot of anger, a particular case may fall short of the offence of abetment of suicide. However, if the accused kept on irritating or annoying the deceased by words or deeds until the deceased reacted or was provoked, a particular case may be that of abetment of suicide. Such being the matter of delicate analysis of human behaviour, each case is required to be examined on its own facts, while taking note of all the surrounding factors having bearing on the actions and psyche of the accused and the deceased."

20. We may also refer to a two-Judge Bench judgment of this Court in Narayan Malhari Thorat v. Vinayak Deorao Bhagat [Narayan Malhari Thorat v. Vinayak Deorao Bhagat, (2019) 13 SCC 598: (2019) 4 SCC (Cri) 636], wherein the judgment [Vinayak Deorao Bhagat v. State of Maharashtra, 2016 SCC OnLine Bom 15933] rendered by the High Court quashing the FIR under Section 482 was set aside. In the said case, an FIR was registered under Section 306IPC stating that the son and daughter-in-law were teachers in a Zila Parishad School where the accused was also a teacher who used to make frequent calls on the mobile of the daughter-in-law and used to harass her. Despite the efforts of the son of the informant in trying to make the accused see reason and stop calling, the

accused continued with his activity. On 9-2-2015, there was a verbal altercation between the son of the informant and the accused and on 12-2-2015, he committed suicide leaving a note stating that his family life had Neutral Citation No. (2024:HHC:7118) been ruined by the accused who should not be pardoned and should be hanged. Under Section 482CrPC, a petition was filed by the accused challenging the FIR, which was allowed by the High .

Court and thereafter, was challenged before this Court.

21. The appeal was allowed by this Court and made the following observations: (Vinayak Deorao Bhagat case [Narayan Malhari Thorat v. Vinayak Deorao Bhagat, (2019) 13 SCC 598: (2019) 4 SCC (Cri) 636], SCC p. 603, para 12) "12. We now consider the facts of the present case.

There are definite allegations that the first respondent would keep on calling the wife of the victim on her mobile and keep harassing her which allegations are supported by the statements of the mother and the wife of the victim recorded during the investigation. The record shows that 3-4 days prior to the suicide there was an altercation between the victim and the first respondent. In light of these facts, coupled with the fact that the suicide note made a definite allegation against the first respondent, the High Court was not justified in entering into question whether the first respondent had the requisite intention to aid or instigate or abate the commission of suicide. At this juncture when the investigation was yet to be completed and a charge sheet, if any, was yet to be filed, the High Court ought not to have gone into the aspect of whether there was a requisite mental element or intention on the part of the respondent." In the above-quoted observations of this Court, there is a clear indication that there was a specific averment in the FIR that the respondent had continuously harassed the spouse of the victim and did not rectify his conduct despite being objected to by the victim. Thus, as a matter of fact, he had actively facilitated the commission of suicide.

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22. What is required to constitute an alleged abetment of suicide under Section 306IPC is there must be an allegation of either direct or indirect act of incitement to the commission of offence of suicide and mere .

allegations of harassment of the deceased by another person would not be sufficient in itself, unless, there are allegations of such actions on the part of the accused which compelled the commission of suicide. Further, if the person committing suicide is hypersensitive and the allegations attributed to the accused are otherwise not ordinarily expected to induce a similarly situated person to take the extreme step of committing suicide, it would be unsafe to hold the accused guilty of abetment of suicide. Thus, what is required is an examination of every case on its own facts and circumstances and keeping in consideration the surrounding circumstances as well, which may have a bearing on the alleged action of the accused and the psyche of the deceased.

15. A similar view was taken in Mahendra K.C. v. State of Karnataka, (2022) 2 SCC 129: (2022) 1 SCC (Cri) 401:

2021:INSC:700: 2021 SCC OnLine SC 1021 wherein it was held: -

24. The essence of abetment lies in instigating a person to do a thing or the intentional doing of that thing by an act or illegal omission. In *Ramesh Kumar v. State of Chhattisgarh* [*Ramesh Kumar v. State of Chhattisgarh*, (2001) 9 SCC 618: 2002 SCC (Cri) 1088], a three-Judge Bench of this Court, speaking through R.C. Lahoti, J. (as the learned Chief Justice then was), observed : (SCC p.

629, para 20) "20. Instigation is to goad, urge forward, provoke, incite or encourage to do "an act". To satisfy the requirement of instigation though it is not necessary that actual words must be used to that effect or what constitutes instigation must necessarily and Neutral Citation No. (2024:HHC:7118) specifically be suggestive of the consequence. Yet a reasonable certainty to incite the consequence must be capable of being spelt out. The present one is not a case where the accused had by his acts or omission or .

by a continued course of conduct created such circumstances that the deceased was left with no other option except to commit suicide in which case an instigation may have been inferred. A word uttered in the fit of anger or emotion without intending the consequences to actually follow cannot be said to be instigation."

25. A two-judge Bench of this Court in *Chitresh Kumar Chopra v. State (NCT of Delhi)* [*Chitresh Kumar Chopra v. State (NCT of Delhi)*, (2009) 16 SCC 605: (2010) 3 SCC (Cri) 367], speaking through D.K. Jain, J., observed:

(SCC pp. 611-12, paras 19-20) "19. As observed in *Ramesh Kumar* [*Ramesh Kumar v. State of Chhattisgarh*, (2001) 9 SCC 618: 2002 SCC (Cri) 1088], where the accused by his acts or by a continued course of conduct creates such circumstances that the deceased was left with no other option except to commit suicide, an "instigation" may be inferred. In other words, in order to prove that the accused abetted the commission of suicide by a person, it has to be established that:

(i) the accused kept on irritating or annoying the deceased by words, deeds or wilful omission or conduct which may even be a wilful silence until the deceased reacted or pushed or forced the deceased by his deeds, words or wilful omission or conduct to make the deceased move forward more quickly in a forward direction; and

(ii) that the accused had the intention to provoke, urge or encourage the deceased to commit suicide while acting in the manner noted above.

Undoubtedly, the presence of mens rea is the necessary concomitant of instigation.

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20. In the background of this legal position, we may advert to the case at hand. The question as to what is the cause of suicide has no easy answers because suicidal ideation and behaviours in human beings are .

complex and multifaceted. Different individuals in the same situation react and behave differently because of the personal meaning they add to each event, thus accounting for individual vulnerability to suicide. Each individual's suicidality pattern depends on his inner subjective experience of mental pain, fear and loss of self-respect. Each of these factors are crucial and exacerbating contributor to an individual's vulnerability to end his own life, which may either be an attempt for self-protection or an escapism from intolerable self." (emphasis in original)

26. This has been reiterated in the decision in *Amalendu Pal v. State of W.B.* [*Amalendu Pal v. State of W.B.*, (2010) 1 SCC 707: (2010) 1 SCC (Cri) 896], where it has been observed: (SCC p. 712, para 12) "12. ... It is also to be borne in mind that in cases of alleged abetment of suicide, there must be proof of direct or indirect acts of incitement to the commission of suicide. Merely on the allegation of harassment without there being any positive action proximate to the time of occurrence on the part of the accused which led or compelled the person to commit suicide, conviction in terms of Section 306 IPC is not sustainable."

(See also in this context the judgments in *Praveen Pradhan v. State of Uttaranchal* [*Praveen Pradhan v. State of Uttaranchal*, (2012) 9 SCC 734 : (2013) 1 SCC (Cri) 146], *Vajinath Kondiba Khandke v. State of Maharashtra* [*Vajinath Kondiba Khandke v. State of Maharashtra*, (2018) 7 SCC 781 : (2018) 3 SCC (Cri) 362], *M. Arjunan v. State* [*M. Arjunan v. State*, (2019) 3 SCC 315 :

(2019) 2 SCC (Cri) 219] , *Ude Singh v. State of Haryana* [*Ude Singh v. State of Haryana*, (2019) 17 SCC 301 : (2020) 3 SCC (Cri) 306] , *Rajesh v. State of Haryana* [*Rajesh v. State of Haryana*, (2020) 15 SCC 359 : (2020) 4 SCC (Cri) 75] and *Gurcharan Singh v. State of Punjab* [*Gurcharan Singh v. State of Punjab*, (2020) 10 SCC 200 : (2021) 1 SCC (Cri) 417] . These decisions have been recently referred to .

in the judgment of this Court in *Arnab Manoranjan Goswami v. State of Maharashtra* [*Arnab Manoranjan Goswami v. State of Maharashtra*, (2021) 2 SCC 427: (2021) 1 SCC (Cri) 834]]."

16. Similar is the judgment in *Kumar @ Shiva Kumar v.*

State of Karnataka, 2024 SCC OnLine SC 216: [2024] 3 S.C.R. 329:

2024 INSC 156 wherein it was observed:

"65. In *Ramesh Kumar v. State of Chhattisgarh* (2001)9 SCC 618, this Court delved into the meaning of the word 'instigate' or 'instigation' and held as under:

20. Instigation is to goad, urge forward, provoke, incite or encourage to do "an act". To satisfy the requirement of instigation though it is not necessary that actual words must be used to that effect or what constitutes instigation must necessarily and specifically be suggestive of the consequence. Yet a reasonable certainty to incite the consequence must be capable of being spelt out. The present one is not a case where the accused had by his acts or omission or by a continued course of conduct created such circumstances that the deceased was left with no other option except to commit suicide in which case an instigation may have been inferred. A word uttered in a fit of anger or emotion without intending the consequences to actually follow cannot be said to be instigation.

66. Thus, this Court held that to 'instigate' means to goad, urge, provoke, incite or encourage to do 'an act'. To satisfy the requirement of 'instigation', it is not necessary that actual words must be used to that effect or that the words or act should necessarily and specifically Neutral Citation No. (2024:HHC:7118) be suggestive of the consequence. But, a reasonable certainty to incite the consequence must be capable of being spelt out. Where the accused by his act or omission or by his continued course of conduct creates a situation .

in which the deceased is left with no other option except to commit suicide, then instigation may be inferred. A word uttered in a fit of anger or emotion without intending the consequences to actually follow cannot be said to be instigation.

67. Again, in the case of Chitresh Kumar Chopra v. State (2009) 16 SCC 605, this Court elaborated further and observed that to constitute 'instigation', a person who instigates another has to provoke, incite, urge or encourage the doing of an act by the other by 'goad' or 'urging forward'. This Court held as follows:

17. Thus, to constitute "instigation", a person who instigates another has to provoke, incite, urge or encourage the doing of an act by the other by "goad" or "urging forward". The dictionary meaning of the word "goad" is "a thing that stimulates someone into action; provoke to action or reaction" (see Concise Oxford English Dictionary); "to keep irritating or annoying somebody until he reacts"

(see Oxford Advanced Learner's Dictionary, 7th Edn.).

18. Similarly, "urge" means to advise or try hard to persuade somebody to do something or to make a person move more quickly and or in a particular direction, especially by pushing or forcing such a person. Therefore, a person who instigates another has to "goad" or "urge forward" the latter with the intention to provoke, incite or encourage the doing of an act by the latter.

68. Thus, this Court has held that in order to prove that the accused had abetted the commission of suicide by a person, the following has to be established:

(i) the accused kept on irritating or annoying the deceased by words, deeds or wilful omission or Neutral Citation No. (2024:HHC:7118) conduct which may even be a wilful silence until the deceased reacted or pushed or forced the deceased by his deeds, words or wilful omission or conduct to make the deceased move forward more quickly in a .

forward direction; and

(ii) that the accused had the intention to provoke, urge or encourage the deceased to commit suicide while acting in the manner noted above.

Undoubtedly, the presence of mens rea is the necessary concomitant of instigation.

69. In *Amalendu Pal alias Jhantu v. State of West Bengal* (2010) 1 SCC 707, this Court after referring to some of the previous decisions held that it has been the consistent view that before holding an accused guilty of an offence under Section 306 IPC, the court must scrupulously examine the facts and circumstances of the case and also assess the evidence adduced before it in order to find out whether the cruelty and harassment meted out to the victim had left the victim with no other alternative to put an end to her life. It must be borne in mind that in a case of alleged abetment of suicide, there must be proof of direct or indirect act(s) of incitement to the commission of suicide. Merely on the allegation of harassment without there being any positive action proximate to the time of occurrence on the part of the accused which led or compelled the deceased to commit suicide, conviction in terms of Section 306 IPC would not be sustainable.

Thereafter, this Court held as under:

13. In order to bring a case within the purview of Section 306 IPC there must be a case of suicide and in the commission of the said offence, the person who is said to have abetted the commission of suicide must have played an active role by an act of instigation or by doing certain act to facilitate the commission of suicide. Therefore, the act of abetment by the person charged with the said offence must be proved and established by the prosecution before he could be convicted under Section 306 IPC.

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70. Similar is the view expressed by this court in *Ude Singh* (supra).

71. In *Rajesh v. State of Haryana* (2020) 15 SCC 359, this .

Court after referring to Sections 306 and 107 of the IPC held as follows:

9. Conviction under Section 306 IPC is not sustainable on the allegation of harassment without there being any positive action proximate to the time of occurrence on the part of the accused, which led or compelled the person to commit

suicide. In order to bring a case within the purview of Section 306 IPC, there must be a case of suicide and in the commission of the said offence, the person who is said to have abetted the commission of suicide must have played an active role by an act of instigation or by doing certain act to facilitate the commission of suicide.

Therefore, the act of abetment by the person charged with the said offence must be proved and established by the prosecution before he could be convicted under Section 306 IPC.

72. Reverting back to the decision in M. Mohan (supra), this Court observed that abetment would involve a mental process of instigating a person or intentionally aiding a person in doing of a thing. Without a positive act on the part of the accused to instigate or aid in committing suicide, conviction cannot be sustained. Delineating the intention of the legislature and having regard to the ratio of the cases decided by this Court, it was concluded that in order to convict a person under Section 306 IPC there has to be a clear mens rea to commit the offence. It would also require an active act or direct act which led the deceased to commit suicide seeing no other option and that this act of the accused must have been intended to push the deceased into such a position that he committed suicide.

73. Sounding a note of caution, this Court in State of West Bengal v. Orilal Jaiswa (1994) 1 SCC 73 observed that the court should be extremely careful in assessing the facts Neutral Citation No. (2024:HHC:7118) and circumstances of each case as well as the evidence adduced in the trial for the purpose of finding whether the cruelty meted out to the victim had in fact induced her to end her life by committing suicide. If it transpires to .

the court that the victim committing suicide was hypersensitive to ordinary petulance, discord and differences in domestic life quite common to the society to which the victim belonged and such petulance, discord and differences were not expected to induce a similarly circumstanced individual to commit suicide, the conscience of the court should not be satisfied for basing a finding that the accused charged of abetting the offence of suicide should be found guilty."

17. Therefore, in view of the binding precedents of the Hon'ble Supreme Court, the prosecution is required to prove that the accused had created such circumstances that the deceased was left with no other option except to commit suicide.

18. Radhe Shyam stated that Poonam overtook them in her car and intercepted the car of Jitender. He saw Poonam getting out of her car and going towards the rear door of the car. She opened the door and dragged Jitender Kumar from his collar. She was saying something to Jitender Kumar. Then he saw them going towards their car and leaving the spot in a car being driven by Jitender Kumar. He saw them fighting in the car and Jitender Kumar slowing down the car 15-20 mtrs. ahead of the bridge. Radhe Shyam and other persons decided not to Neutral Citation No. (2024:HHC:7118) interfere in the husband-wife matter and stopped the car near Anandpur at a Dhaba for tea and snacks.

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19. Dharminder Sharma stated that the car was stopped near the Railway bridge at around 5.15 PM. Poonam overtook the car and stopped her car in front of them. She came out of her car and went towards their car. She opened the door of the car where Jitender Kumar was sitting and pulled him out of the car by his shirt by saying 'Kute Sale Niche Uttar, Me Tujhe Batati Hu'. She took him to their car and they left towards Mehli.

Jitender Kumar was driving the car. They did not follow the car because they thought that it was their personal matter.

20. Rajinder Sharma stated that Poonam overtook them in her car bearing registration No. HP-51A-3009. Their car stopped near the Railway bridge. He saw Poonam getting out of her car. She went towards the rear door of the car after opening the door. She dragged Jitender Kumar from his collar. He did not see that she had beaten Jitender Kumar but she was saying something to Jitender Kumar that he could not understand clearly. He saw them going towards their car. They left the spot in the car being driven by Jitender Kumar. Gopal Sharma started Neutral Citation No. (2024:HHC:7118) the car. He saw them fighting in the car.

21. Virender Sharma also made a similar statement. He .

stated that the car was stopped near the Railway bridge.

Poonam came from behind and stopped her car in front of them. She came out of her car and went towards their car. She opened the door of the seat where Jitender Kumar was sitting and took him out of his car by his shirt collar saying 'Kute Sale Niche Uttar, Me Tujhe Batati Hu'. She took him to their car and they left towards Mehli. Jitender Kumar was driving the car.

22. These statements, even if accepted to be correct, only show a single incident wherein Poonam had abused her husband and dragged him out of the car, in which he was sitting. This fact cannot amount to instigating or provoking a person to commit suicide. This incident does not show that the accused had created such circumstances that the deceased was left with no other option but to commit suicide. As was held by the Hon'ble Supreme Court in Geo Varghese (supra) that if a person committing suicide is hypersensitive and the allegations attributed to the accused are otherwise not ordinarily expected to induce a similarly situated person to take the extreme step of Neutral Citation No. (2024:HHC:7118) committing suicide, it would be unsafe to hold the accused guilty of abetting the suicide. In the present case, the single act .

of the accused by holding the deceased by his collar and abusing him in front of his friends cannot lead to an inference that there was an instigation to commit suicide.

23. Reliance was placed upon the judgment of the Hon'ble Supreme Court in Didi Ram Bhiksha Pati Vs. State of Andhra Pradesh AIR 2018 SC 527, wherein it was held that when the suicide note referred to the acts of the accused and the role played by them; the FIR could not be quashed. The facts show that the deceased was appointed as a Field Officer. He collected various amounts but the plots were not registered. The deceased was abused and he committed suicide due to the mental

harassment. This shows that there was a series of acts including the pressure built by the purchaser of the plots and the act of the accused of withholding the money. The abuses were the last straw. In the present case, the statements of the witnesses show only a stray incident and this judgment will not apply to the present case.

24. Reliance was also placed upon Praveen Pradhan Vs. Neutral Citation No. (2024:HHC:7118) State of Uttranchal 2013 (1) Criminal Court Cases 238, wherein it was held that instigation has to be gathered from the .

circumstances. In the cited case, the accused was compelling the accused to indulge in several wrongful practices with which the deceased was not comfortable. The accused made illegal demands which were not fulfilled. The accused harassed and insulted the deceased at regular intervals and even stated in the presence of the entire staff that had there been any other person, he would have died by hanging himself. These facts show the series of continuous events and even a suggestion to commit suicide which is lacking in the present case.

25. A reference was also made to Chatresh Kumar Chopra Vs. State 2009 (4) Criminal Court Cases 508, wherein the Hon'ble Supreme Court found that it was not a case of mere quarrel. The evidence suggested that the deceased was pushed to the wall and the only escape route for him was the commission of the suicide. Such evidence is missing in the present case.

26. Reena Sharma, sister of the deceased stated that there was a love marriage between Jitender Kumar and Poonam but Poonam started fighting with Jitender Kumar on the first Neutral Citation No. (2024:HHC:7118) day of the marriage. She used to fight with Jitender Kumar on trivial issues and used to beat him with punches and kicks. Once .

she had slapped Jitender Kumar and Jitender Kumar had gone to the Women Police Station, from where they were sent after counseling.

27. Ms Dixit Sharma stated that she had seen Poonam and Jitender Kumar fighting very frequently. She heard loud noises coming from the house of Sant Ram and heard Smt. Rukmani Devi saying don't fight. Poonam and Jitender Kumar were inside their bedroom and had locked their bedroom from inside. She heard her saying do not beat my son, come out and discuss the matter. She heard Poonam shouting from inside the room. The door was opened by Poonam and Jitender Kumar.

She had never seen Poonam hitting or beating Jitender Kumar, but they used to fight frequently almost 2 to 3 times per week.

28. Sandeep Datta, Advocate, stated that Jitender Kumar came to him to seek divorce but he had counselled him and told him that this problem occurs in new marriages and everything would be okay with time. Jitender Kumar told him that he was very upset due to the suspicious nature of his wife. He disclosed Neutral Citation No. (2024:HHC:7118) that Poonam had a suspicion that Jitender Kumar had illicit relations with other women outside the marriage. Jitender .

Kumar had also told him that she used to threaten Jitender Kumar that he would commit suicide. He was upset with the constant threats of Poonam. He advised him to take Poonam on vacation but the situation did not improve.

29. Sant Ram Sharma stated that Poonam called Jitender Kumar on his mobile but Jitender Kumar did not pick it up. She came out and quarrelled with Jitender Kumar. She took him inside the room and closed the door. She used to fight with Jitender Kumar and beat him with punches and kicks. She slapped Jitender Kumar once and Jitender Kumar had gone to the Women's Police Station. Poonam used to threaten Jitender Kumar by saying that she would send her parents-in-law behind the bars. She used to tell Jitender Kumar to live separately from his parents. She demanded rupees one crore for leaving him.

30. Rukmani Sharma stated that Poonam used to quarrel with Jitender Kumar by saying that he never cared for her. She used to abuse Jitender Kumar. She also used to say that people Neutral Citation No. (2024:HHC:7118) call her driver's wife and Jitender Kumar hired a driver. She fell once and called Jitender Kumar. She quarrelled with Jitender .

Kumar.

31. These statements only show that the relationship between Jitender Kumar and Poonam was not cordial. Poonam used to quarrel with Jitender Kumar but these facts do not show that Poonam had created such a situation that the deceased was left with no option but to commit suicide. Rukmani stated that Poonam and Jitender used to be together. As per the material collected by the CBI, they were planning to go to Manali to celebrate their first anniversary. These circumstances do not lead to an inference that the deceased was driven to the wall from which the only escape was suicide.

32. The learned Trial Court had rightly held that the presence of Dharminster and Virender in the car was doubtful.

The call detail records show that Dharminster had called the deceased at 4.49 pm and Virender called Dharminster at 5.18 pm. There was no need for Dharminster to call the deceased if he was in the same car. Similarly, Virender had no reason to call Dharminster if he was also travelling with Dharminster in one Neutral Citation No. (2024:HHC:7118) car. Thus, the learned Trial Court had rightly doubted their presence.

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33. It was submitted that the learned Trial Court erred in considering the defence of the accused and the Court has to see the evidence from the perspective of the prosecution. This submission is not acceptable. The Court has to see whether there is sufficient grounds for proceeding against the accused and for that, all the evidence collected by the prosecution has to be considered. If any evidence favours the accused, it cannot be ignored on the ground that the accused has to lead the evidence to prove the same. The Court has to balance the rights of both parties and cannot shut out the evidence in favour of either party while deciding the future course of action. In the present case,

when the evidence on record in the form of a call detail record showed that Virender and Dharminder could not have been present in the car, the Court cannot shut out the evidence and say that this evidence is in favour of the accused and will not be considered by the Court.

34. It was submitted that the CBI collected the evidence in favour of the accused and it is impermissible. This submission Neutral Citation No. (2024:HHC:7118) cannot be accepted. It was laid down by the Hon'ble Supreme Court in Manu Sharma v. State (NCT of Delhi), (2010) 6 SCC 1 :

(2010) 2 SCC (Cri) 1385; 2010 SCC OnLine SC 480 that the investigation should be fair without a biased mind. It was observed at page 80:

199. It is not only the responsibility of the investigating agency but as well as that of the courts to ensure that the investigation is fair and does not in any way hamper the freedom of an individual except in accordance with the law. Equally enforceable canon of the criminal law is that the high responsibility lies upon the investigating agency not to conduct an investigation in a tainted and unfair manner. The investigation should not prima facie be indicative of a biased mind and every effort should be made to bring the guilty to the law as nobody stands above the law de hors his position and influence in society.

200. In Kashmeri Devi v. Delhi Admn. [1988 Supp SCC 482:

1988 SCC (Cri) 864; JT (1988) 2 SC 293] It has been held that the record of investigation should not show that efforts are being made to protect and shield the guilty even where they are police officers and are alleged to have committed a barbaric offence/crime. The courts have even declined to accept the report submitted by the investigating officer where is glaringly unfair and offends basic canons of the criminal investigation and jurisprudence. *Contra veritatem lex nunquam aliquid permittit*: implies a duty on the court to accept and accord its approval only to a report which is the result of faithful and fruitful investigation. The Court is not to accept the report which is *contra legem* but (sic) to conduct a judicious and fair investigation and submit a report in accordance with Section 173 of the Code which places a burden and obligation on the State Administration. The aim of criminal justice is two-fold. Severely punishing Neutral Citation No. (2024:HHC:7118) and really or sufficiently preventing the crime. Both these objects can be achieved only by fair investigation into the commission of the crime, sincerely proving the case of the prosecution before the court and the guilty is .

punished in accordance with the law.

201. Historically but consistently the view of this Court has been that an investigation must be fair and effective, must proceed in the proper direction in consonance with

the ingredients of the offence and not in a haphazard manner. In some cases, besides the investigation being effective the accused may have to prove miscarriage of justice but once it is shown the accused would be entitled to definite benefit in accordance with the law. The investigation should be conducted in a manner so as to draw a just balance between citizens' rights under Articles 19 and 21 and the expansive power of the police to conduct the investigation. These well-established principles have been stated by this Court in *Sasi Thomas v.*

State [(2006) 12 SCC 421: (2007) 2 SCC (Cri) 72], *State (Inspector of Police) v. Surya Sankaram Karri* [(2006) 7 SCC 172: (2006) 3 SCC (Cri) 225] and *T.T. Antony v. State of Kerala* [(2001) 6 SCC 181: 2001 SCC (Cri) 1048].

202. In *Nirmal Singh Kahlon v. State of Punjab* [(2009) 1 SCC 441: (2009) 1 SCC (Cri) 523] this Court specifically stated that a concept of fair investigation and fair trial are concomitant to the preservation of the fundamental right of the accused under Article 21 of the Constitution of India. We have referred to this concept of judicious and fair investigation as the right of the accused to fair defence emerges from this concept itself. The accused is not subjected to harassment, his right to defence is not unduly hampered and what he is entitled to receive in accordance with law is not denied to him contrary to law.

35. It was held in *Manohar Lal Sharma v. Principal Secy.*, (2014) 2 SCC 532: (2014) 4 SCC (Cri) 1: 2013 SCC OnLine SC 1120 that the police are bound to protect the life and liberty of the Neutral Citation No. (2024:HHC:7118) citizens and it must search for the truth. It was observed at page 553:

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"25. Lord Denning [The Due Process of Law, First Indian Reprint 1993, p. 102.] has described the role of the police thus:

"In safeguarding our freedoms, the police play a vital role. Society for its defence needs a well-led, well- trained and well-disciplined force of police whom it can trust: and enough of them to be able to prevent crime before it happens, or if it does happen, to detect it and bring the accused to justice.

The police, of course, must act properly. They must obey the rules of right conduct. They must not extort confessions by threats or promises. They must not search a man's house without authority. They must not use more force than the occasion warrants."

26. One of the responsibilities of the police is the protection of the life, liberty and property of citizens. The investigation of offences is one of the important duties the police has to perform. The aim of the investigation is ultimately to search for truth and bring the offender to the book."

36. This position was reiterated in Babubhai v. State of Gujarat [(2010) 12 SCC 254: (2011) 1 SCC (Cri) 336] wherein it was observed at page 269:

32. The investigation into a criminal offence must be free from objectionable features or infirmities which may legitimately lead to a grievance on the part of the accused that the investigation was unfair and carried out with an ulterior motive. It is also the duty of the investigating officer to conduct the investigation avoiding any kind of mischief and harassment to any of the accused. The Neutral Citation No. (2024:HHC:7118) investigating officer should be fair and conscious so as to rule out any possibility of fabrication of evidence and his impartial conduct must dispel any suspicion as to its genuineness. The investigating officer "is not merely to .

bolster up a prosecution case with such evidence as may enable the court to record a conviction but to bring out the real unvarnished truth". (Vide R.P. Kapur v. State of Punjab [AIR 1960 SC 866: 1960 Cri LJ 1239], Jamuna Chaudhary v. State of Bihar [(1974) 3 SCC 774: 1974 SCC (Cri) 250: AIR 1974 SC 1822], SCC at p. 780, para 11 and Mahmood v. State of U.P. [(1976) 1 SCC 542: 1976 SCC (Cri) 72: AIR 1976 SC 69])

33. In State of Bihar v. P.P. Sharma [1992 Supp (1) SCC 222:

1992 SCC (Cri) 192] this Court has held as under: (SCC pp. 263-65, paras 57, 59-61)
"57. ... Investigation is a delicate painstaking and dextrous process. Ethical conduct is absolutely essential for investigative professionalism. ...

Therefore, before countenancing such allegations of mala fides or bias it is the salutary and onerous duty and responsibility of the court, not only to insist upon making specific and definite allegations of personal animosity against the investigating officer at the start of the investigation but also must insist to establish and prove them from the facts and circumstances to the satisfaction of the court.

59. Malice in law could be inferred from doing of wrongful act intentionally without any just cause or excuse or without there being reasonable relation to the purpose of the exercise of statutory power. ...

60. ... The word personal liberty [under Article 21 of the Constitution] is of the widest amplitude covering a variety of rights which goes to constitute the personal liberty of a citizen. Its deprivation shall be only as per the procedure prescribed in the Code and the Evidence Act conformable to the mandate of the Supreme Law, Neutral Citation No. (2024:HHC:7118) the Constitution. The investigator must be alive to the mandate of Article 21 and is not empowered to trample upon personal liberty arbitrarily....

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61. An investigating officer who is not sensitive to the constitutional mandates, may be prone to trample upon the personal liberty of a person when he is actuated by mala fides."

34. In Navinchandra N. Majithia v. State of Meghalaya [(2000) 8 SCC 323: 2000 SCC (Cri) 1510: AIR 2000 SC 3275] this Court considered a large number of its earlier judgments to the effect that investigating agencies are guardians of the liberty of innocent citizens. Therefore, a heavy responsibility devolves on them of seeing that innocent persons are not charged on an irresponsible and false implication. There cannot be any kind of interference or influence on the investigating agency and no one should be put through the harassment of a criminal trial unless there are good and substantial reasons for holding it. CrPC does not recognise a private investigating agency, though there is no bar for any person to hire a private agency and get the matter investigated at his own risk and cost. But such an investigation cannot be treated as an investigation made under the law, nor can the evidence collected in such a private investigation be presented by the Public Prosecutor in any criminal trial. Therefore, this Court emphasised on independence of the investigating agency and deprecated any kind of interference observing as under: (SCC p. 329, paras 17-18) "17. The above discussion was made for emphasising the need for an official investigation to be totally extricated from any extraneous influence. ... All complaints shall be investigated with equal alacrity and with equal fairness irrespective of the financial capacity of the person lodging the complaint.

18. ... A vitiated investigation is the precursor for miscarriage of criminal justice."

Neutral Citation No. (2024:HHC:7118) (emphasis added)

35. In Nirmal Singh Kahlon [(2009) 1 SCC 441: (2009) 1 SCC (Cri) 523] this Court held that a concept of fair .

investigation and fair trial are concomitant to preservation of the fundamental right of the accused under the Article 21 of the Constitution of India."

37. Therefore, the investigating agency was bound to carry out a fair investigation and produce all the material before the Court.

38. Anil Sharma-informant, cousin of the deceased, stated that he received a call from Jitender Kumar, who asked him to record the call and he did so. Jitender Kumar told him that he was fed up with the marriage. He was being harassed and mentally tortured by his wife and his in-laws. He sounded depressed and he was weeping over the phone. He stated that he was ending his life and asked Anil to take care of his parents.

He recorded the entire conversation on the mobile phone. He made a supplementary statement in which he stated that Arun Kumar and Ashok Kumar were with him. They had not taken the call of Jitender Kumar seriously because he (Jitender Kumar) had earlier acted similarly. He had not called anyone on that day and had not taken the call of Jitender Kumar seriously.

This statement shows that even the cousin of Jitender Kumar Neutral Citation No. (2024:HHC:7118) did not consider the call to be serious enough to take any action as he was in the habit of doing so. Ashok also stated that Anil .

Kumar told him that Jitender Kumar was saying that he would kill himself but they did not take the call of Jitender Kumar seriously. These statements show that the version of the petitioner that the deceased was fed up with the behaviour of the accused and wanted to end his life is not correct. Had it been so, the cousin of the deceased would have taken some steps to prevent the deceased from committing suicide after he had expressed his intention to do so.

39. The deceased made a call to his mother-in-law in which he stated that his wife did not have the guts but he was dying. She had got from the vehicle deliberately because she did not dare to die, however, he would show by dying. This corroborates the version that the deceased wanted to take his life and the life of his wife as well; however, she got down the vehicle and the deceased in an act of daredevilry drove his vehicle into a gorge. This does not show the act of a person who was depressed and left with no other option but to take his life.

40. Thus, the evidence collected by the prosecution did Neutral Citation No. (2024:HHC:7118) not show that the accused had abetted the commission of suicide by the deceased and the learned Trial Court had rightly .

accepted the closure report.

41. It was submitted that the learned Trial Court erred in not taking cognizance based on the protest petition. This submission cannot be accepted, as the protest petition does not contain any prayer to take cognizance by treating the protest petition as a complaint. The petitioners made two prayers, namely to take the cognizance based on the police report or send the matter to the CBI for further investigation. When the petitioners had not prayed for taking cognizance of the protest petition, the Court cannot be faulted for not doing so.

42. It was submitted that the Investigating Officer had bullied and threatened the witnesses and the learned Trial Court should have ordered a higher-ranking official to carry out the investigation. This submission is not acceptable.

No affidavit of any witness was filed to show that he was bullied or threatened. Simply because the allegations of bullying and threatening have been made by the petitioner cannot mean that the Court has to order an investigation by a higher official.

Neutral Citation No. (2024:HHC:7118) Taken to a logical conclusion, no investigation will end in such cases because the complainant can always make such .

allegations against every investigating officer howsoever high ranking he may be until the report to his satisfaction is submitted. If the allegations were correct, nothing prevented the petitioners from filing the affidavit to support such allegations.

43. No other point was urged.

44. Therefore, the learned Trial Court had rightly accepted the closure report and no fault can be found with the order of the learned Trial Court.

45. Consequently, the present petition fails and the same is dismissed. The record of CBI and learned Trial Court be returned forthwith.

(Rakesh Kainthla) Judge 21st August, 2024 (Chander)